

THE BOULEVARD SHOPPING CENTER LIMITED WAIVER OF EXCLUSIVE USE RIGHTS

This Limited Waiver of Exclusive Use Rights (this "**Agreement**") is entered into as of the ____ day of August, 2025 (the "**Effective Date**"), by and among:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506, acting by and through its duly authorized representative, Adam Abdalla (hereinafter referred to as the "**Lessor**" and/or "**Belle Realty**");
and

THE PINK PAISLEY, LLC, a Louisiana limited liability company, whose mailing address is 1216 N Dugas Road, Lafayette, Louisiana 70507, acting by and through its duly authorized representative, Amy Lemoine (hereinafter referred to as the "**Lessee**," "**Pink Paisley**," or "**Exclusive Use Holder**");
and

PARISH LETTERING, LLC, a Louisiana limited liability company, doing business as and generally known as **GREEK EXPRESSIONS**, whose current mailing address is 205 Pomerol Place, Lafayette, Louisiana 70503, acting by and through its duly authorized representative, Nicole Trahan (hereinafter referred to as the "**Prospective Tenant**" and/or "**Greek Expressions**").

(Belle Realty, Pink Paisley, and Greek Expressions hereinafter collectively referred to as the "**Parties**")

WITNESSETH:

WHEREAS, Lessor and Pink Paisley entered into that certain Lease Agreement (the "**Pink Paisley Lease Agreement**") dated June 27, 2022, for certain premises located within The Boulevard Shopping Center at Lafayette, Louisiana;

WHEREAS, the Pink Paisley Lease Agreement grants Pink Paisley certain exclusive use rights within The Boulevard Shopping Center as specifically set forth in Section 2.01 thereof (the "**Pink Paisley Exclusive Use**");

WHEREAS, Lessor desires to lease Unit 137 Arnould Boulevard, Lafayette, Louisiana 70506 to Greek Expressions for specific permitted uses as described herein (the "**Greek Expressions Proposed Lease**");

WHEREAS, a portion of Greek Expressions' proposed business operations may potentially conflict with Pink Paisley's exclusive use rights under the Pink Paisley Lease Agreement;

WHEREAS, the Parties have met and negotiated in good faith regarding the potential conflict and have agreed to resolve such conflict through this limited waiver;

WHEREAS, the Parties have agreed that Greek Expressions' proposed use will complement rather than compete with Pink Paisley's business and will benefit the overall shopping center environment; and

WHEREAS, this Agreement has been negotiated in exchange for valuable consideration as set forth

herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

SECTION A:
DEFINITIONS

1. GREEK EXPRESSIONS PERMITTED USE

“Greek Expressions shall be permitted to use the premises for the retail sale of clothing and related items including the manufacturing, custom and pre-made sorority and fraternity merchandise, apparel, accessories, gifts, and novelty items, specifically including but limited to:

- i. Custom Greek-letter apparel (e.g., shirts, hats, jackets)
- ii. Sorority/fraternity-specific gifts and accessories
- iii. Embroidery and vinyl personalization limited to Greek-affiliated items
- iv. Novelty items and décor featuring Greek symbols or chapter branding
- v. Custom embroidery, screen printing, heat-press, vinyl, or monogramming services on-site

Greek Expressions shall **NOT** be permitted to use the premises for:

- i. A delicatessen or restaurant whose operations are the same or similar to a Jason's Deli or whose primary menu items are salads, soups, sandwiches, and baked potatoes;
- ii. A veterinary clinic engaged primarily in the care and treatment of cats;
- iii. A retail boutique whose primary business is the sale of general (non-Greek affiliated) home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry;
- iv. Any business operations that would primarily compete with Pink Paisley's core business model as defined below.

2. PINK PAISLEY EXCLUSIVE USE

As set forth in the Pink Paisley Lease Agreement, Pink Paisley has the exclusive right to operate within The Boulevard Shopping Center as a retail boutique for the sale of items including, but not limited to, clothing, gifts, accessories, home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry, with the specific prohibition that Lessor shall not voluntarily enter into any lease agreement giving a third party the right to operate a business whose primary business would be a retail gift store selling items which are the same or similar to that of Pink Paisley.

SECTION B:
LIMITED WAIVER OF EXCLUSIVE USE RIGHTS:

1. SCOPE OF WAIVER

Pink Paisley hereby waives its exclusive use rights under the Pink Paisley Lease Agreement solely and exclusively to the extent necessary to permit Greek Expressions to operate the Greek Expressions Permitted Use as specifically defined in Section A hereof. This waiver extends only to those specific activities and merchandise categories that are clearly within the Greek Expressions Permitted Use and does not constitute a general waiver of Pink Paisley's exclusive use rights.

2. LIMITATIONS AND CONDITIONS

This waiver is subject to the following limitations and conditions:

- a) Limited exclusively to Parish Lettering, LLC d/b/a Greek Expressions and no other entity;
- b) Non-transferable and non-assignable without Pink Paisley's prior written consent;
- c) Applicable only to the specific Greek Expressions Permitted Use as defined herein;
- d) Subject to revocation as set forth in Section C hereof;
- e) Contingent upon Greek Expressions' continued compliance with all terms of this Agreement.

3. DECLARATION OF NON-BREACH

Pink Paisley acknowledges and agrees that Lessor's execution of the Greek Expressions Proposed Lease for the Greek Expressions Permitted Use shall not constitute a breach or default under the Pink Paisley Lease Agreement.

4. BINDING NATURE

This waiver shall be binding upon Pink Paisley and its successors, assigns, and transferees under the Pink Paisley Lease Agreement, subject to the limitations and conditions set forth herein.

SECTION C: CONSIDERATION

In consideration for this limited waiver, Belle Realty agrees to provide Pink Paisley with the following:

- 1. Priority consideration for any future premium retail spaces that may become available within The Boulevard Shopping Center;
- 2. Guaranteed maintenance of Pink Paisley's preferential lease renewal terms;
- 3. Belle Realty's commitment to actively monitor and enforce compliance with the Greek Expressions Permitted Use limitations.

SECTION D: REVOCATION

1. DEFAULT

For the purposes of this Agreement, Greek Expressions shall be in default of this Agreement if it materially deviates from the Greek Expressions Permitted Use in such a manner that would cause Greek Expressions' primary business to materially change and such material change would compete with Pink Paisley's retail gift store operations, including the sale of general (non-Greek affiliated) clothing, gifts, accessories, home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry.

2. NOTICE AND CURE PROVISIONS

In the event of an alleged deviation from the Greek Expressions Permitted Use, Pink Paisley shall provide written notice to both Belle Realty and Greek Expressions specifying the nature of the alleged deviation. Greek Expressions shall have thirty (30) days from receipt of such notice to cure the deviation or demonstrate that no deviation exists. If the deviation is not cured within such thirty (30) day period, Pink Paisley may proceed in addressing the matter pursuant to the terms set forth in the Pink Paisley Permitted Use contained in the Pink Paisley Lease Agreement.

SECTION E: ADDITIONAL PROVISIONS

1. PRESERVATION OF OTHER RIGHTS

All other exclusive use rights granted to Pink Paisley under the Pink Paisley Lease Agreement remain in full force and effect and are not waived, modified, or impaired by this Agreement.

2. COOPERATION CLAUSE

The Parties agree to cooperate in good faith to ensure the success of both Pink Paisley's and Greek Expressions' businesses within The Boulevard Shopping Center, including reasonable coordination of business hours, promotional activities, and customer service initiatives.

3. ENFORCEMENT

Belle Realty agrees to include appropriate use restrictions in the Greek Expressions lease that are consistent with the Greek Expressions Permitted Use as defined herein, and to actively monitor and enforce compliance with such restrictions.

SECTION F: GENERAL PROVISIONS

1. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Louisiana, without regard to conflict of laws principles.

2. INTEGRATION

This Agreement constitutes the entire understanding between the Parties regarding the subject matter hereof and supersedes all prior negotiations, representations, or agreements relating to the waiver of Pink Paisley's exclusive use rights as they pertain to Greek Expressions.

3. AMENDMENT

This Agreement may only be modified by a written instrument signed by all Parties.

4. SEVERABILITY

If any provision of this Agreement is deemed invalid, illegal, or unenforceable, the remainder of this Agreement shall remain in full force and effect.

5. RECORDING

The Parties agree that a memorandum of this Agreement may be recorded in the public records of Lafayette Parish, Louisiana, to provide constructive notice of the terms hereof.

6. AUTHORITY

Each Party represents and warrants that it has full corporate power and authority to enter into this Agreement and that the execution of this Agreement has been duly authorized by all necessary corporate action.

7. DISPUTE RESOLUTION

Any disputes arising under this Agreement shall first be subject to good faith mediation. If mediation is unsuccessful, disputes shall be resolved through binding arbitration in Lafayette, Louisiana, in accordance with the rules of the American Arbitration Association.

8. EFFECTIVE DATE AND TERM

This Agreement shall become effective upon execution by all Parties and shall remain in effect for the duration of both the Pink Paisley Lease Agreement and any lease agreement between Belle Realty and Greek Expressions, unless earlier terminated in accordance with the terms hereof.

WHEARAS, the Parties have executed this Agreement as of the date first written above.

BELLE REALTY OF LAFAYETTE, L.L.C.

By: _____

Adam Abdalla, Authorized Representative

Date: _____

THE PINK PAISLEY, LLC

By: _____

Amy Lemoine, Owner

Date: _____

PARISH LETTERING, LLC d/b/a GREEK EXPRESSIONS

By: _____

Nicole Trahan, Authorized Representative

Date: _____